IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.130 - CP(CAA)/15(AHM)2023
in
CA(CAA)/10(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Madhurkamal (Thaltej) Complex Pvt. Ltd. **.....Applicant**
Madhav (Thaltej) Complex Pvt. Ltd
Mandar (Thaltej) Complex Pvt. Ltd
Vyom Realty Pvt. Ltd
Shushna Complex Pvt. Ltd.
Viraj Complex Pvt. Ltd.
Shreekala Infrastructure Pvt. Ltd.
Siddhivinayk Securities Pvt. Ltd
Shaligra Investments Pvt. Ltd.
Ganeshsagar Infrastruacture Pvt. Ltd.

Order delivered on ..15/05/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Mr. Samit Bhatt for Mr. Sandeep Singhi, Adv.
For the Income Tax	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta
For the OL	: Mr. Suresh Shrivastava
For the RD	: Mr. Shiv Pal Singh, Assistant Director

ORDER

Learned Counsel Mr. Samit Bhatt appears for the Petitioner Companies. Regarding the reply from the Income Tax Department, he states that only Rs.75,796/- relating to the Transferee Company, i.e., Ganeshsagar Infrastructure Pvt. Ltd. is pending. The Transferee Company will continue and therefore he undertakes to make the payment as finally determined as per law.

Learned Counsel Ms. Pankti Shah for the Income Tax Department appears and states that she has received the reply of the Petitioner Companies. On going through the reply, she has no objection to approval of the Scheme.

Mr. Shiv Pal Singh appears for the RD's office and states that Report has been furnished on 08.05.2023. Learned Counsel for the Petitioner Companies states that they have submitted the reply. However, Mr. Shiv Pal Singh states that he has not received the reply. Learned Counsel is directed to give copy of the reply to Mr. Shiv Pal Singh in the RD's office within two days.

Mr. Suresh Shrivastava for the OL appears and states that Report has been filed and response has been received from the Petitioner Companies. After going through the response of the Petitioner Companies and the commitments made therein regarding compliances, there is no objection by the office of OL to approval of the Scheme.

List for hearing on 05.06.2023.

Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)